

Vehicles with Open Beds Towing a Boat or Watercraft

It is an offense for a person to operate a motor vehicle that is towing a boat or personal watercraft in or on which a person who is younger than 18 years of age is riding.

It is a defense to prosecution that the driver was operating the motor vehicle:

1. In a parade
2. In an emergency, or
3. On a beach

Open Bed Passenger Restrictions

It is a Class B misdemeanor to operate a truck, road tractor, or truck tractor when another person occupies a trailer or semi-trailer being drawn by the truck, road tractor, or truck tractor.

It is a defense to prosecution that the person:

1. Towing the vehicle did not know another person occupied the trailer or semi-trailer
2. Occupying the trailer or semi-trailer was in a part of the vehicle designed for human habitation
3. Operating or towing the vehicle was:
 - a. In a parade or in an emergency
 - b. Transporting farm-workers from one field to another field on a farm-to-market road, ranch-to-market road, or county road outside a municipality, or
 - c. In a hayride permitted by the governing body of or a law enforcement agency of each county or municipality in which the hayride will occur

When Stopped by Law Enforcement

If you are stopped by law enforcement, it is suggested you:

1. Slow down and move the vehicle safely to the right of the road.
2. Park your vehicle as far to the right of the main traffic lane as possible. If available, park on the right shoulder or, if unavailable, park on a nearby well-lighted side street or parking lot away from high volume traffic.
3. Place the vehicle in a parking position, set the emergency brake, turn the engine off, and activate the hazard warning lights.
4. If at night, turn on the interior dome light.
5. Remain in the car, lower the driver's window if you feel safe to do so. Keep both hands clearly in sight on top of the steering wheel. Wait for the law enforcement officer to give you instructions. An officer may approach from either side of the vehicle.
6. Tell the officer if you are transporting any type of weapon.
7. Before reaching into your glove box or under the seat to retrieve your proof of insurance or driver's license, inform the officer of where the items are located and follow the officer's directions.
8. If asked to exit the vehicle, check for passing vehicles to exit safely.
9. Advise passengers to remain in the car unless other instructions are given by the law enforcement officer, and
10. At the conclusion of the traffic stop, give the appropriate signals and safely return to the proper lane of traffic when released by the law enforcement officer.

Obligations, Responsibilities, Courtesy and Safety

State law requires a driver to immediately stop when approached by an authorized emergency vehicle and you may be arrested if you do not stop immediately. If you feel the area is unsafe to stop immediately or if you have concerns the vehicle is not a real police vehicle, you can take the following steps to minimize the risk of being arrested or charges being filed against you: turn on your hazard lights and drive slowly and carefully below the posted speed limit; you may call 9-1-1 and remain on the phone with the operator while you stop and verify the officer's identity; you may drive to a nearby well-lighted, populated place to stop. It is important to understand that law enforcement jurisdictions overlap and a local 9-1-1 call center operator may not be able to immediately determine what officer is working in that area at that time. If you stop in an unsafe location, such as on a bridge or a high traffic roadway, an officer may direct you over the public address speaker to move to a safer location. Follow the officer's directions.

Law enforcement officers, drivers, and passengers should respond with courtesy during traffic stops and other officer/citizen interactions. Drivers and passengers should not exit the vehicle unless asked to do so. Exiting your vehicle may be perceived as aggressive behavior and a threat to the officer's safety. Drivers and passengers inside a vehicle should not attempt to reach, dig, or search for their license or insurance documents before or while an officer is approaching. Drivers who transport handguns in their vehicles are encouraged to keep them in a separate location from license and insurance documentation.